

Court No. - 9

Case :- WRIT - C No. - 69948 of 2005

Petitioner :- Chandra Bhan Singh

Respondent :- State Of U.P. Thru' Secy., U.P. Govt. Lkw. & Ors.

Petitioner Counsel :- C.B. Singh, B.N. Singh

Respondent Counsel :- C.S.C., Amrendra Singh, H.P. Dubey, W.H. Khan

Hon'ble Ashok Bhushan, J.

Hon'ble Mrs. Sunita Agarwal, J.

Heard Shri C.B. Singh, the petitioner, appeared in person.

No one has appeared for the respondents.

Judgment reserved.

Order Date :- 5.4.2013

SB

Reserved on 5.4.2013
Delivered on 30.5.2013

Case :- WRIT - C No. - 69948 of 2005

Petitioner :- Chandra Bhan Singh

Respondent :- State Of U.P. Thru' Secy., U.P. Govt. Lkw. & Ors.

Petitioner Counsel :- C.B. Singh, B.N. Singh

Respondent Counsel :- C.S.C., Amrendra Singh, H.P. Dubey, W.H. Khan

Connected with

Case :- WRIT - C No. - 12933 of 2003

Petitioner :- Chandra Bhan Singh

Respondent :- State Of U.P. Thru' Principal Secy. U.P. Govt. & Ors.

Petitioner Counsel :- C.B. Singh (In Person)

Respondent Counsel :- C.S.C., A.L. Yadav, Dharendra Pratap Singh, H.P. Dubey, Vinod Mishra

Hon'ble Ashok Bhushan, J.

Hon'ble Mrs. Sunita Agarwal, J.

(Delivered by Hon'ble Mrs. Sunita Agarwal, J.)

The writ petition no. 12933 of 2003 was filed with the prayer that the amount deposited by the petitioner in taking electric connection of tubewell be refunded as the excess money has been taken by the officers at the time of connection. The money was deposited by the petitioner in the office of the respondent no. 3 Executive Engineer, Electricity Division, Banda.

During pendency of the said writ petition, another writ petition no. 69948 of 2005 was filed by the petitioner seeking quashing of the Clause 3.7 and 3.8 of the U.P. Electricity supply Code, 2005 and notification of Rate Schedule LMV-5 dated 20.12.2004 issued by the U.P. Power Corporation, Lucknow i.e. respondent no. 3. Further prayer is commanding respondents to realise the charges as scheduled previously by respondent no. 2 i.e. Electricity Regulatory Commission as per notification dated 2.12.2002 and to re-adjust the excess amount deposited in the office of respondents no. 3 and 4 by the petitioner as per provisions of Section 62(4) of the Electricity Act, 2003.

The petitioner's case is that he got electricity connection of the tubewell for irrigation of plots and the payments were being made regularly as per the schedule of fixed rate by the respondent no. 2 from time to time. The tariff order dated 22.10.2002 was issued by the Electricity Regulatory

Commission in exercise of power under the Regulatory Commission Act, 1998 suppressing all previous notifications and instructions, revised the rate schedule supplied to all consumers in respect of supply of electricity power consumed for running tubewells for agricultural purposes which has come in effect from 9.11.2002, replacing the provisions of existing rates, the notification was issued by respondent no. 2 including the Rate Schedule, LMV-5 for providing electricity to tubewell for irrigation purposes. By the impugned notification dated 22.11.2004, the respondent no.3 enhanced the rate of tariff as Rs.130 per BHP per month in place of Rs.60/- per month since 1.1.2005 without disposal of objection raised by the petitioner and other farmers. The petitioner submitted his complaint against impugned notification dated 22.11.2004.

The contention of learned counsel for the petitioner is that respondents are imposing the charges of urban rate schedule without meter reading. He further submits that it is incorrect that the notification dated 22.11.2004 published in the newspaper and the tariff notified have been decided by the U.P. Electricity Regulatory Commission rather licensee is charging higher rates on its own. The same is discriminatory in nature as per Rate Schedule for Bundelkhand region, tariff charges for private tubewell is highly excessive. Clause 3.7 of the Electricity Supply Code-2005 is regarding classification of consumers and clause 3.8 regarding charges for supply of electricity to consumers as per classification under clause 3.7. Both the clauses are discriminatory and Rate Schedule LMV-5 as per the rate fixed by the U.P. Electricity Regulatory Commission for providing tubewells annexed as annexures 1 and 2 to the writ petition are liable to be quashed. The charges are to be realised as per the schedule previously made by the notification dated 2.12.2002 i.e. at the rate of Rs.60/- per BHP being charged in other parts of the State.

Before dealing with the submission of the learned counsel for the petitioner, it would be appropriate to go through the provisions of the Act and Code which provide to fix the tariff. Under Section 64 of the Electricity Act, 2003 on the application made for determination of tariff by a generating company or licensee, Appropriate commission after receipt of

the application and considering objections and suggestion from the public, issue a tariff order accepting the application with such modification as may be specified in the order. Section 62 and 64 of the Electricity Act, 2003 is quoted as under:-

“62.Determination of Tariff. (1) The Appropriate Commission shall determine the tariff in accordance with provisions of this Act for –

(a) supply of electricity by a generating company to a distribution licensee:

Provided that the Appropriate Commission may, in case of shortage of supply of electricity, fix the minimum and maximum ceiling of tariff for sale or purchase of electricity in pursuance of an agreement, entered into between a generating company and a licensee or between licensees, for a period not exceeding one year to ensure reasonable prices of electricity;

(b) transmission of electricity ;

(c) wheeling of electricity;

(d) retail sale of electricity.

Provided that in case of distribution of electricity in the same area by two or more distribution licensees, the Appropriate Commission may, for promoting competition among distribution licensees, fix only maximum ceiling of tariff for retail sale of electricity.

(2) The Appropriate Commission may require a licensee or a generating company to furnish separate details, as may be specified in respect of generation, transmission and distribution for determination of tariff.

(3) The Appropriate Commission shall not, while determining the tariff under this Act, show undue preference to any consumer of electricity but may differentiate according to the consumer's load factor, power factor, voltage, total consumption of electricity during any specified period or the time at which the supply is required or the geographical position of any area, the nature of supply and the purpose for which the supply is required.

(4) No tariff or part of any tariff may ordinarily be amended more frequently than once in any financial year, except in respect of any changes expressly permitted under the terms of any fuel surcharge formula as may be specified.

(5) The Commission may require a licensee or a generating company to comply with such procedures as may be specified for calculating the expected revenues from the tariff and charges which he or it is permitted to recover.

(6) If any licensee or a generating company recovers a price or charge exceeding the tariff determined under this section, the excess amount shall be recoverable by the person who has paid such price or charge along with interest equivalent to the bank rate without prejudice to any other liability incurred by the licensee.”

64.Procedure for tariff order (1) An application for determination of tariff under section 62 shall be made by a generating company or licensee in such manner and accompanied by such fee, as may be determined by regulations.

(2) Every applicant shall publish the application, in such abridged form

and manner, as may be specified by the Appropriate Commission.

(3) The Appropriate Commission shall, within one hundred and twenty days from receipt of an application under sub-section (1) and after considering all suggestions and objections received from the public,-

- (a) issue a tariff order accepting the application with such modifications or such conditions as may be specified in that order;
- (b) reject the application for reasons to be recorded in writing if such application is not in accordance with the provisions of this Act and the rules and regulations made thereunder or the provisions of any other law for the time being in force:

Provided that an applicant shall be given a reasonable opportunity of being heard before rejecting his application.

(4) The Appropriate Commission shall, within seven days of making the order, send a copy of the order to the Appropriate Government, the Authority, and the concerned licensees and to the person concerned.

(5) Notwithstanding anything contained in Part X, the tariff for any inter-State supply, transmission or wheeling of electricity, as the case may be, involving the territories of two States may, upon application made to it by the parties intending to undertake such supply, transmission or wheeling, be determined under this section by the State Commission having jurisdiction in respect of the licensee who intends to distribute electricity and make payment therefor:

(6) A tariff order shall, unless amended or revoked, shall continue to be in force for such period as may be specified in the tariff order.”

Further Section 24 as contained in Chapter VII of The U.P. Electricity Reforms Act, 1999 provides that licensee shall follow the procedure specified in the regulations in calculating the expected revenue from charges which he is permitted to recover and in determining tariffs. Sub-section 4(a) of Section 24 provides that every licensee shall provide to the Commission at such time and in such manner as may be provided by the Regulations, full details of its calculation for the ensuing financial year of the expected revenue from charges which it believes to have been permitted to recover and thereafter it shall also furnish such further information as the Commission may reasonably require to assess the licensee's calculation. Sub-section 4(c) of Section 24 provides that the Commission while determining the tariff shall also take into consideration the objections, if any, received within one month from the date of last publication of the notice referred to in Clause 4 (b). Sub-section (5) provides that the Commission shall, within ninety days from the date on which the licensee has furnished the information under sub-section(4) give notice to the licensee that it has accepted the licensee's calculations or not

after specifying the reasons therefor and proposing modifications or alternative calculations. Sub-section (6) provides that the Commission may, after notifying its decision on the licensee's calculations as provided in sub-section (5) determine whether the tariff charged by the licensee is required to be modified, and if so, require the licensee to modify the tariff or any part thereof with immediate effect. Further sub-section (7) provides that each holder of a supply licence shall publish in at least two daily newspapers, widely circulating in the area of supply, and make available to the public on request, the tariff for the electricity within its area of supply and such tariff shall come into force after seven days from the last date of such publication.

We may now refer to Clause 3.7 and 3.8 of the U.P. Electricity Supply Code, 2005 made in exercise of power conferred under the Electricity Act, 2003 which is applicable to all distribution licensees in their respective licence area in the State from the date the commission by notification is appointed for the purpose. Clause 3.7 provides that the licensee may classify or reclassify consumers into various categories from time to time, may fix different tariffs for different categories of consumers with the approval of the Commissioner. Clause 3.8(a) provides that the tariff and other charges for the supply of electricity shall be announced by the licensee with the approval of the Commission in accordance with section 24 of the U.P. Electricity Reforms Act, 1999 to the extent it is consistent with provisions of the Electricity Act, 2003. Such tariff or charges shall take effect only after 7 days from the date of publication in at least two daily newspapers having wide circulation in the area of supply. Rates Schedule LMV-5 fixed by the U.P. Electricity Regulation Commission for providing tubewells provides rates or charges for various consumers classified under clause 3.7 of the Electricity Code, 2005.

In the counter affidavit filed on behalf of respondents no. 3 and 4 it has been specifically stated in paragraph 8 that though the petitioner is getting supply through rural feeder but as the area is exempted from schedule rostering on account of special treatment/privilege given to

Budelkhand area, the rate applicable to the petitioner is as per clause 4(b) of Rate Schedule LMV-5. The tariff order dated 22.10.2002 has been replaced by the present tariff order issued in November, 2004.

The contention of learned counsel for the petitioner that the rate of urban schedule is being charged is incorrect and clause 3.7 and 3.8 of the Code 2005 are in no manner inconsistent or contrary to section 62 and 64 of the Electricity Act, 2003. The tariff order dated 22.11.2004 notified in the year 2004-2005 was effective from 1.12.2004. The same was applicable to Four Distributing Companies, fixed by the U.P. Electricity Regulatory Commission in accordance with provision of Section 24 (7) of the U.P. Electricity Reforms Act, 1999. The copy of the relevant news publication has been annexed as annexure '8' to the writ petition. The same has not been challenged by the petitioner.

In so far as contention of learned counsel for the petitioner regarding challenge of tariff fixed for the area in which the tubewell exists there is no dispute to the effect that rates or charges as mentioned in clause 4(b) and Rate Schedule LMV-5 will be applicable as the area is exempted from the schedule rostering.

In so far as contention of learned counsel for the petitioner that rates are being fixed by the licensee on its own and the same was not fixed by the Appropriate Commission and therefore is inconsistency with the provisions of Sections 62 and 64 of the Electricity Act, 2003, it is clear from careful perusal of the Rate Schedule LMV-5 and notification published in newspaper dated 22.11.2004 (Annexure 8) to the writ petition that the same was fixed by the U.P. Electricity Regulatory Commission in accordance with the provisions of Section 24 of the Act. There is no inconsistency with the provisions of Section 62 and 64 of the Electricity Act, 2003. The classification as provided under Clause 3.7 and different charges for supply under clause 3.8 of the Electricity Code, 2005 cannot be said to be discriminatory or unreasonable. The consumer is reasonably classified and the tariff having been fixed by the Appropriate Commission as per section 62 and 64 of the Act, the contention of the learned counsel for the petitioner for quashing Regulation 3.7 and 3.8 of the Code, 2005 is

devoid of merits.

Learned counsel for the petitioner has failed to show any inconsistency in view of the provisions as mentioned above. The tariff as fixed by the Regulatory Commission, notification by the licensee is in accordance with the provision of U.P. Electricity Act, 2003 and Electricity Code, 2005. No other point has been argued by the learned counsel for the petitioner. The writ petition lacks merit and is dismissed accordingly.

So far as writ petition No. 12933 of 2003 is concerned, the same was filed with the prayer to refund the alleged excess amount paid by the petitioner at the time of connection of the tubewell in plot no. 1856 in September, 2001, the contention of the petitioner in his representation is that the survey was wrongly done and the estimate was prepared by the respondent department for the connection on the basis of incorrect survey report. It was stated in the representation dated 19.10.2001 that the actual distance of electricity pole from which the connection has been given is 610 Meters and the estimate prepared by the officer of the corporation shows the distance of the pole is 776 Meters. The survey was done in front of the petitioner and at that time maximum distance was found 610 Meters. However, the petitioner deposited Rs.49,328/- on 18.10.2001 on account of wrong estimate prepared by the electricity department showing incorrect distance of the pole. At the time of deposit the petitioner could not know about the fact, therefore represented the authorities later on. When no heed was paid, the present writ petition was filed. In the present petition, apart from the application filed by the petitioner and the representation given, nothing has been brought on record to substantiate that excess money was charged at the time of giving electric connection to the private tubewell of the petitioner. Challenge of rampant correction on incorrect survey report is without basis. Moreover, the petitioner has not pressed the present writ petition during course of argument as such, the writ petition No.12933 of 2003 is also dismissed.

In the result, both the writ petitions are dismissed being devoid of merits.

Order Date :- 30.5.2013/P.P.